

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.

Date purchased:

-----X
JUAN WALKER,

Plaintiff,

Plaintiff designates

KINGS

County as the place of trial.

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
MELISSA L. ESPINAL, ANDREA M. ANASTASIO and
A.I. IOUKLIAEVSKIKH,

Defendants.

The basis of the venue is

Situs of Occurrence

SUMMONS

Plaintiff resides at
19-76 Linden Street
Queens, NY 11385

County of Queens

-----X
To the above named Defendants

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

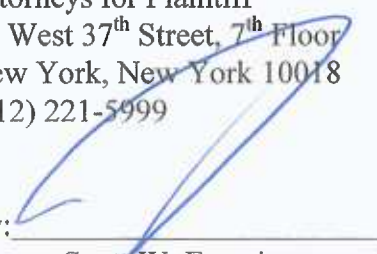
Dated: New York, New York
April 18, 2017

Defendant's address:
The City of New York
100 Church Street
New York, New York 10007

New York City Police Department
One Police Plaza
New York, New York

Police Officer Melissa L. Espinal

Antin, Ehrlich & Epstein, LLP
Attorneys for Plaintiff
49 West 37th Street, 7th Floor
New York, New York 10018
(212) 221-5999

By: 

Scott W. Epstein

Andrea M. Anastasio
37 Robbinsville Edinburg Road
Trenton, New Jersey 08691

A.I. Ioukliaevskikh

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JUAN WALKER,

Plaintiff,

Index No. 101058/10

-against-

COMPLAINT

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER MELISSA L. ESPINAL,
ANDREA M. ANASTASIO and A. I. IOUKLIAEVSKIKH,

Defendants.
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Plaintiff, complaining of the defendants herein by his attorneys, Antin, Ehrlich &
Epstein, LLP, respectfully sets forth and alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION AGAINST
THE CITY OF NEW YORK "CITY" AND THE
NEW YORK CITY POLICE DEPARTMENT "NYPD"

1. At all times herein mentioned, the defendant, The City of New York, was and still is a municipality organized and existing under and by virtues of the laws of the State of New York.
2. At all times herein mentioned, the defendant New York City Police Department (herein after refereed to as "NYPD") was and still is a municipal agency and an agency of defendant The City of New York duly organized and existing under and by virtue of the laws of the State of New York.
3. At all times mentioned, plaintiff duly served a Notice of Claim and Intention to Sue thereupon on the defendant, The City of New York, on July 19, 2016, within the time prescribed by law.

4. That defendant, The City of New York, has neglected and refused to make an adjustment in payment thereof within more than thirty (30) days after service of said Notice of Claim and Intention to Sue.

5. That the plaintiff has duly complied with all statutes and laws applicable to the defendant, The City of New York, precedent to the making of this claim and bringing this action.

6. On or about April 21, 2016, the plaintiff was involved in a motor vehicle accident with a vehicle operated by defendant Andrea M. Anastasio, bearing registration number DRH1919, New York at or about the intersection of Bushwick Avenue and Eastern Parkway, in the County of Kings, City and State of New York.

7. On or about April 21, 2016, defendant A. I. Ioukliaevskikh was a passenger in the motor vehicle operated by defendant Andrea M. Anastasio.

8. That at the aforesaid time and place the defendant, "NYPD", its agents, servants and/or employees were called to the scene.

9. That at the aforesaid location at approximately 3:00pm, defendants Andrea M. Anastasio and A. I. Ioukliaevskikh made a false complaint against the plaintiff to the defendant New York City Police Department.

10. Over his objection to the lack of investigation by defendant, Police Officer Melissa L. Espinal, and other agents, servants and/or employees of the defendant "NYPD", plaintiff was handcuffed, arrested, detained and falsely prosecuted.

11. Despite the above, and at the special instance, request, and encouragement of the defendants Andrea M. Anastasio and A. I. Ioukliaevskikh, Police Officer Melissa L. Espinal, falsely arrested him.

12. That plaintiff was thereafter spirited away from the scene of the arrest by the aforementioned officer and/or other agents, servants and/or employees of the defendant, The City of New York and/or "NYPD", acting, inter alia, at the behest of defendants, Andrea M. Anastasio and A. I. Ioukliaevskikh.

13. The plaintiff, at the behest of defendants, their agents, servants and/or employees, was transported by defendant, Police Officer Melissa L. Espinal to the confines of a New York City Police precinct.

14. Thereafter, defendants, their agents, servants and/or employees transported the plaintiff to a holding cell at the aforesaid location.

15. While in the custody of defendants, their agents, servants, officers and/or employees, the plaintiff was subjected to embarrassing, humiliating, disparaging, abusive, intimidating, harassing and terrorizing conduct by said defendants, their agents, servants, officers and/or employees, including unlawful searches and interrogations all without probable cause or justifiable reason.

16. After several hours, plaintiff was charged with a violation pursuant to CPL 240.20(5) for disorderly conduct (obstructing vehicular traffic) and released.

17. That the aforesaid charges were brought against the plaintiff, inter alia, directly as a result of false, misleading, unlawful and improper charges and accusations made by defendant(s), their agents, servants, officers and/or employees.

18. The defendants, their agents, servants, officers and/or employees committed the foregoing acts notwithstanding the fact that the plaintiff had not only not committed a crime or violation, but was a victim of false accusations.

19. The defendant, Police Officer Melissa L. Espinal and defendants, "City and "NYPD", their agents, servants, officers and/or employees, knew or should have known that the aforementioned charges and accusations were false.

20. All of the foregoing conduct was committed without probable cause, without excuse or justification, unlawfully and against the will and consent of the plaintiff.

21. As a consequence of the unlawful and wrongful conduct to which he was subjected, the plaintiff (a) suffered imprisonment; (b) was verbally abused and intimidated, and harassed; (c) was subjected to degrading, dehumanizing and emotionally destructive condition; (d) was publicly shamed, disgraced, ridiculed and humiliated; (e) suffered and continue to suffer still from mental pain and anguish, public humiliation and embarrassment and other items of attendant damages; (f) suffered emotional distress and psychological trauma; (g) suffered injuries to his reputation; and (h) were deprived of his civil rights as well as his State and Federal constitutional rights.

22. During all relevant times, defendants, their agents, servants, officers and/or employees were acting under color of state law or authority and/or within the scope of their official authority and employment.

23. The limitations set forth in Article 16 of the CPLR are applicable to this action and this action falls within one or more of the exceptions set forth in Section 1602 of the CPLR.

24. Defendants the City of New York and New York City Police Department and/or Police Officer Melissa L. Espinal are liable to plaintiff under the principles of *respondeat superior*.

25. That as a result of the foregoing, plaintiff, Juan Walker, has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction plus attorneys' fees.

AS AND FOR A SECOND CAUSE OF ACTION
AGAINST DEFENDANTS "CITY" AND "NYPD"

26. Plaintiff repeats, reiterates and re-alleges each and every allegations contained in paragraphs "1" - "25 " above as if the same were more fully re-alleged herein at length.

27. The actions of defendants, their agents, servants, officers and/or employees caused the plaintiff to be deprived of his fundamental rights under the Constitution and laws of the United State including but not limited to, the guarantee against unreasonable searches and seizures secured by the Fourth and Fourteenth Amendments; the right not to be deprived of liberty or property or be arrested, detained or imprisoned without probable cause under the Fourth, Fifth and Fourteenth Amendment of the Constitution of the United States and the right not to be arrested, prosecuted, indicted or detained upon false testimony and/or evidence in violation of the Due Process Clauses of the Fifth and Fourteenth Amendments.

28. Throughout the events set forth above, defendants, their officers, agents, servants and/or employees, acted with actual malice toward the plaintiff, with utter and deliberate indifference to and disregard for the plaintiff's rights under the Constitution and laws of the United States and the State of New York, and without probable or reasonable cause to believe that the plaintiff had engaged in or was about to engage in any criminal or wrongful activity.

29. The foregoing violations of the plaintiff's rights constituted Constitutional torts and were affected by actions taken under color of law, and within the scope of authority.

30. By reason of the foregoing, defendants are liable to plaintiff pursuant to 42 U.S.C. § 1983.

31. That as a result of the foregoing, plaintiff, Juan Walker, has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction plus attorneys' fees.

AS AND FOR A THIRD CAUSE OF ACTION
AGAINST DEFENDANTS "CITY" AND "NYPD"

32. Plaintiff repeats, reiterates and re-alleges each and every allegations contained in paragraphs "1" - "31 " above as if the same were more fully re-alleged herein at length.

33. Defendants, their officers, agents, servants and/or employees stopped, seized and detained the plaintiff, with the conscious objective of causing the plaintiff's arrest, detention and imprisonment as well as charges being filed against the plaintiff, through the intentional use of false, misleading and unreliable evidence and testimony, through deliberate indifference to whether the evidence and testimony was false, misleading or unreliable, and/or through careless, reckless, grossly negligent or negligent investigative conduct.

34. As a result of the aforementioned conduct, and the complaints made were based on false, misleading and unreliable testimony and/or evidence, defendants, their agents, servants, officers and/or employees were the cause of the plaintiff's wrongful detention, booking, prosecution and resultant damages.

35. But for the false, misleading and unreliable evidence and testimony provided and the other acts of misconduct by defendants as set forth above, the plaintiff would not have been detained, charged, prosecuted or imprisoned and would not have suffered her losses and damages.

36. By virtue of the foregoing, defendants, their officers, agents, servants and/or employees initiated, or caused the initiation and/or continuation of, criminal proceedings against the plaintiff.

37. The criminal proceedings instituted and contained against the plaintiff was wholly without legal or probable cause, were instituted and continued with malice, and were terminated in favor of the plaintiff.

38. That as a result of the foregoing, plaintiff, Juan Walker, has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction plus attorneys' fees.

AS AND FOR A FOURTH CAUSE OF ACTION
AGAINST DEFENDANTS "CITY" AND "NYPD"

39. Plaintiff repeats, reiterates and re-alleges each and every allegations contained in paragraphs "1" - "38" above as if the same were more fully re-alleged herein at length.

40. By virtue of the foregoing, defendants, their officers, agents, servants and/or employees, are liable to plaintiffs for the false arrest and false imprisonment of the plaintiff, and all resultant damages, because of their careless, negligent, reckless and/or deliberate failure, or deliberate indifference to the need to properly hire, train, discipline, retain and/or supervise their agents, servants, employees and/or officers with regard to the duties of said agents, servants, officers and/or employees.

41. That as a result of the foregoing, plaintiff, Juan Walker, has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction plus attorneys' fees.

AS AND FOR A FIFTH CAUSE OF ACTION
AGAINST DEFENDANTS "CITY" AND "NYPD"

42. Plaintiff repeats, reiterates and re-alleges each and every allegations contained in paragraphs "1" - "41 " above as if the same were more fully re-alleged herein at length.

43. That in the course of seizing, arresting, detaining and imprisoning the plaintiff, the agents, servants, officers and/or employees of defendants, acting within the scope of their employment, improperly restrained him and used excessive force on the plaintiff.

44. Those agents, servants, employees and/or officers of defendants, if any, who did not advertently and directly attack the plaintiff, nevertheless acted in concert with their fellow officers of intentionally, willfully and recklessly failing to intervene and restrain their fellow officers.

45. The plaintiff sustained serious, personal injuries as a direct result of the false imprisonment by defendants, their agents, servants, employees and/or officers.

46. The plaintiff avers that the physical force used against him was wholly unnecessary, without justification, and excessive under any standard of proper police conduct. The injuries suffered by the plaintiff were directly caused by the officers' use of excessive force and/or their failure to restrain their fellow officers.

47. Defendants, their agents, servants and/or employees, acting within the scope of their employment, did by their wrongful conduct, intentionally, willfully, and without justification, commit an assault and battery upon the plaintiff by employing excessive and unnecessary physical force and restraint upon the plaintiff.

48. That as a result of the foregoing, plaintiff, Juan Walker, has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction plus attorneys' fees.

**AS AND FOR A SIXTH CAUSE OF ACTION
AGAINST DEFENDANTS "CITY" AND "NYPD"**

49. Plaintiff repeats, reiterates and re-alleges each and every allegations contained in paragraphs "1" - "48 " above as if the same were more fully re-alleged herein at length.

50. Defendants, their agents, servants and/or employees, acting within the scope of their employment, wantonly, willfully, with malice and intention, without jurisdiction, and knowing and intending that their actions would injure the plaintiffs, physically, mentally and emotionally, engaged in the aforesaid wrongful conduct.

51. The conduct of the defendants, their agents, servants, employees and/or officers was so outrageous and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

52. That as a result of the foregoing, plaintiff, Juan Walker, has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction plus attorneys' fees.

**AS AND FOR A SEVENTH CAUSE OF ACTION
AGAINST DEFENDANTS "CITY" AND "NYPD"**

53. Plaintiff repeats, reiterates and re-alleges each and every allegations contained in paragraphs "1" - "52 " above as if the same were more fully re-alleged herein at length.

54. Defendants, their agents, servants, officers and/or employees, acting within the scope of their employment by virtue of the foregoing conduct, falsely arrested the plaintiff.

55. That as a result of the foregoing, plaintiff, Juan Walker, has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction plus attorneys' fees.

**AS AND FOR A EIGHTH CAUSE OF ACTION
AGAINST DEFENDANTS "CITY" AND "NYPD"**

56. Plaintiff repeats, reiterates and re-alleges each and every allegations contained in paragraphs "1" - "55" above as if the same were more fully re-alleged herein at length.

57. Defendants, their agents, servants, officers and/or employees, acting within the scope of their employment, by virtue of the foregoing conduct, falsely imprisoned the plaintiff.

58. That as a result of the foregoing, plaintiff, Juan Walker, has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction plus attorneys' fees.

**AS AND FOR A NINTH CAUSE OF ACTION
AGAINST DEFENDANTS "CITY" AND "NYPD"**

59. Plaintiff repeats, reiterates and re-alleges each and every allegations contained in paragraphs "1" - "58" above as if the same were more fully re-alleged herein at length.

60. Defendants, their agents, servants, officers and/or employees, acting within the scope of their employment, by virtue of the foregoing conduct, did intentionally inflict emotional distress upon the plaintiff.

61. That as a result of the foregoing, plaintiff, Juan Walker, has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction plus attorneys' fees.

AS AND FOR A TENTH CAUSE OF ACTION
AGAINST DEFENDANTS "CITY" AND "NYPD"

62. Plaintiff repeats, reiterates and re-alleges each and every allegations contained in paragraphs "1" - " 61 " above as if the same were more fully re-alleged herein at length.

63. Defendants, their agents, servants, officers and/or employees, by virtue of the foregoing conduct, acting with disinterested malevolence, intentionally inflicted harm upon the plaintiff without excuse or justification thus constituting a *prima facie* tort.

64. That as a result of the foregoing, plaintiff, Juan Walker, has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction plus attorneys' fees.

AS AND FOR A ELEVENTH CAUSE OF ACTION
AGAINST DEFENDANTS "CITY" AND "NYPD"

65. Plaintiff repeats, reiterates and re-alleges each and every allegations contained in paragraphs "1" - "64 " above as if the same were more fully re-alleged herein at length.

66. Defendants, their agents, servants, officers and/or employees, acting within the scope of their employment, by virtue of the foregoing conduct, did violate the civil rights of the plaintiff.

67. That as a result of the foregoing, plaintiff, Juan Walker, has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction plus attorneys' fees.

AS AND FOR A TWELFTH CAUSE OF ACTION
AGAINST DEFENDANTS "CITY" AND "NYPD"

68. Plaintiff repeats, reiterates and re-alleges each and every allegations contained in paragraphs "1" - "67 " above as if the same were more fully re-alleged herein at length.

69. Defendants, their agents, servants, officers and/or employees, acting within the scope of their employment, by virtue of the foregoing conduct did commit abuse of process by activating regularly issued process, to wit, the filing of criminal complaints against the plaintiff.

70. Defendants, their agents, servants, officers and/or employees, sought detriment to the plaintiff without excuse or justification and which was outside the legitimate ends of the criminal process.

71. That as a result of the foregoing, plaintiff, Juan Walker, has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction plus attorneys' fees.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
AGAINST DEFENDANTS "CITY" AND "NYPD"

72. Plaintiff repeats, reiterates and re-alleges each and every allegations contained in paragraphs "1" - "71 " above as if the same were more fully re-alleged herein at length.

73. Defendants, their agents, servants, officers and/or employees, acting within the scope of their employment, by virtue of the foregoing conduct did negligently, carelessly and/or recklessly inflict emotional distress upon the plaintiff.

74. The occurrences complained of were due wholly and solely to the negligence, carelessness and/or recklessness of the defendants, their agents, servants, officers and/or employees acting within the scope of their employment with respect to the arrest, imprisonment and prosecution of the plaintiff without any fault want of care or culpable conduct on the part of the plaintiffs or the plaintiff contributing thereto.

75. That as a result of the foregoing, plaintiff, Juan Walker, has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction plus attorneys' fees.

AS AND FOR A FOURTEENTH CAUSE OF ACTION
AGAINST DEFENDANTS ANDREA M. ANASTASIO
and A. I. IOUKLIAEVSKI KH

76. Plaintiff repeats, reiterates and re-alleges each and every allegations contained in paragraphs "1" - "75 " above as if the same were more fully re-alleged herein at length.

77. Upon information and belief, that at all times hereinafter mentioned, defendant Andrea M. Anastasio was the operator of a certain motor vehicle bearing registration number DRH1919, New York.

78. Upon information and belief, that at all times hereinafter mentioned, defendant A. I. Ioukliaevskikh was a passenger in the aforesaid motor vehicle bearing registration number DRH1919, New York.

79. That the plaintiff, Juan Walker was the operator of a certain motor vehicle bearing registration number GKW9126, New York.

80. That on the 21st day of April, 2016, at approximately 12:30 p.m., defendants' aforesaid motor vehicle came into contact with and struck the vehicle plaintiff was operating on Bushwick Avenue at or near its intersection with Eastern Parkway, a public street and thoroughfares in the County of Kings, City and State of New York.

81. That shortly after the aforesaid accident, defendants Andrea M. Anastasio and A. I. Ioukliaevskikh, got out of their vehicle and after inspecting the vehicles, defendant, Andrea M. Anastasio, called for police assistance.

82. Thereafter several more calls were made by the plaintiff, to the New York City Police Department for assistance with no response for approximately 2 hours after the initial call.

83. Upon the arrival of the defendants, "NYCPD" and in particular defendant Police Officer Melissa L. Espinal, defendants, Andrea M. Anastasio and A. I. Ioukliaevskikh, made false statements about the plaintiff.

84. Upon information and belief, the defendants accused the plaintiff of not being the driver of the vehicle that was struck by defendants Andrea M. Anastasio and A. I. Ioukliaevskikh's vehicle.

85. Upon information and belief, the plaintiff was also accused of leaving the scene of the aforesaid accident.

86. That on April 21, 2016 at approximately 5:30 p.m., defendants Andrea M. Anastasio and A. I. Ioukliaevskikh, intentionally, willfully and maliciously made false statements about this plaintiff to their co-defendants, resulting in his false arrest, detention, imprisonment and prosecution.

87. That as a result of the foregoing, plaintiff, Juan Walker, has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction, plus punitive damages.

AS AND FOR A FIFTEENTH CAUSE OF ACTION
AGAINST DEFENDANTS ANDREA M. ANASTASIO
and A. I. IOUKLIAEVSKIKH

88. Plaintiff repeats, reiterates and re-alleges each and every allegations contained in paragraphs "1" - "87" above as if the same were more fully re-alleged herein at length.

89. That on or about April 21, 2016, at approximately 5:30 p.m., plaintiff Juan Walker was the operator of a motor vehicle bearing registration number GKW9126, New York at the intersection of Bushwick Avenue and Eastern Parkway, Brooklyn, New York.

90. That on or about April 21, 2016, at approximately 5:30 p.m., defendant Andrea M. Anastasio was the operator of a motor vehicle bearing registration number DRH1919, New York at the intersection of Bushwick Avenue and Eastern Parkway, Brooklyn, New York.

91. That on or about April 21, 2016, at approximately 5:30 p.m., defendant A. I. Ioukliaevskikh was a passenger in the motor vehicle bearing registration number DRH1919, New York at the intersection of Bushwick Avenue and Eastern Parkway, Brooklyn, New York.

92. That at that time and place, the defendant Andrea M. Anastasio and defendant A. I. Ioukliaevskikh, intentionally, willfully, and maliciously filed an unwarranted and false complaint against the plaintiff with defendants the City of New York, "NYPD", and/or Police Officer Melissa L. Espinal.

93. That at that time and place, the defendant(s) Andrea M. Anastasio and/or defendant A. I. Ioukliaevskikh, intended to have the plaintiff confined, the plaintiff was conscious of the confinement, the plaintiff did not consent to the confinement, and the confinement was not otherwise privileged.

94. That at that time and place, the defendant(s) Andrea M. Anastasio and/or defendant A. I. Ioukliaevskikh affirmatively induced and/or importuned defendants the City of New York, "NYPD", and/or Police Officer Melissa L. Espinal to arrest the plaintiff.

95. That at that time and place, the defendant(s) Andrea M. Anastasio and/or defendant A. I. Ioukliaevskikh gave advice to and/or encouraged defendants the City of New York, "NYPD", and/or Police Officer Melissa L. Espinal to arrest and prosecute the plaintiff.

96. That at that time and place, the defendant(s) Andrea M. Anastasio and/or defendant A. I. Ioukliaevskikh instigated plaintiff's arrest.

97. That at that time and place, the defendant(s) Andrea M. Anastasio and/or defendant A. I. Ioukliaevskikh took an active role in the arrest, procured it to be made, and/or showed active, officious, and undue zeal, to the point where defendants the City of New York, "NYPD", and/or Police Officer Melissa L. Espinal were not acting of their own volition and were carrying out the defendant(s) Andrea M. Anastasio and/or defendant A. I. Ioukliaevskikh requests.

98. Due to defendant(s) Andrea M. Anastasio and/or defendant A. I. Ioukliaevskikh's misconduct, plaintiff was falsely arrested, detained, imprisoned, and confined, and the confinement was not otherwise privileged.

99. That the arrest imprisonment, and confinement of the plaintiff, which resulted in the aforementioned injuries, was due to the intentional acts, recklessness, carelessness, and negligence of the defendant(s) Andrea M. Anastasio and/or defendant A. I. Ioukliaevskikh, without any negligence on the part of the plaintiff contributing thereto.

100. That by reason of the foregoing, the plaintiff Juan Walker sustained, serious, severe, permanent and protracted injuries, suffered mental anguish; was rendered sick, sore, lame and disabled and continue so to be; was permanently injured and was and will continue to be compelled to undergo medical expense and medical care and treatment; was, and is upon information and belief and will hereafter be incapacitated from his usual lifestyle and occupation; and was otherwise damaged.

101. That as a result of the foregoing, plaintiff, Juan Walker, has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction, plus attorneys' fees.

AS AND FOR A SIXTEENTH CAUSE OF ACTION
AGAINST DEFENDANTS ANDREA M. ANASTASIO
and A. I. IOUKLIAEVSKIKH

102. Plaintiff repeats, reiterates and re-alleges each and every allegations contained in paragraphs "1" - "101" above as if the same were more fully re-alleged herein at length.

103. Defendant(s) Andrea M. Anastasio and/or defendant A. I. Ioukliaevskikh by their intentional conduct and for the purpose of causing severe mental distress, recklessly conducted themselves in a manner including, but not limited to, abusing, and terrorizing the plaintiff.

104. The aforesaid conduct of the defendant(s) Andrea M. Anastasio and/or defendant A. I. Ioukliaevskikh were so outrageous and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

105. The defendant(s) Andrea M. Anastasio and/or defendant A. I. Ioukliaevskikh intentionally caused plaintiff to suffer severe emotional distress and permanent injuries and damages as set forth above and said defendant(s) Andrea M. Anastasio and/or defendant A. I. Ioukliaevskikh acted, by their conduct, with reckless and utter disregard for the consequences that might follow.

106. Defendant(s) Andrea M. Anastasio and/or defendant A. I. Ioukliaevskikh, by virtue of the foregoing conduct, did intentionally inflict emotional distress upon the plaintiff.

107. The actions on the part of the defendant(s) Andrea M. Anastasio and/or defendant A. I. Ioukliaevskikh were intentional, willful and malicious.

108. That as a result of the foregoing, plaintiff, Juan Walker, has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction, plus attorneys' fees.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION
AGAINST DEFENDANTS ANDREA M. ANASTASIO
and A. I. IOUKLIAEVSKI KH

109. Plaintiff repeats, reiterates and re-alleges each and every allegations contained in paragraphs "1" - "108" above as if the same were more fully re-alleged herein at length.

110. Defendant(s) Andrea M. Anastasio and/or defendant A. I. Ioukliaevskikh, by virtue of the foregoing conduct did negligently, carelessly and/or recklessly inflict emotional distress upon the plaintiff.

111. The occurrences complained of were due wholly and solely to the negligence, carelessness and/or recklessness of the defendants, their agents, servants, officers and/or employees acting within the scope of their employment with respect to the arrest, imprisonment and prosecution of the plaintiff without any fault want of care or culpable conduct on the part of the plaintiffs or the plaintiff contributing thereto.

112. That as a result of the foregoing, plaintiff, Juan Walker, has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction plus attorneys' fees.

AS AND FOR A EIGHTEENTH CAUSE OF ACTION
AGAINST DEFENDANTS ANDREA M. ANASTASIO
and A. I. IOUKLIAEVSKI KH

113. Plaintiff repeats, reiterates and re-alleges each and every allegations contained in paragraphs "1" - "112" above as if the same were more fully re-alleged herein at length.

114. Defendant(s) Andrea M. Anastasio and/or defendant A. I. Ioukliaevskikh, by virtue of the foregoing conduct, acting with disinterested malevolence, intentionally inflicted harm upon the plaintiff without excuse or justification thus constituting a *prima facie* tort.

115. That as a result of the foregoing, plaintiff, Juan Walker, has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction plus attorneys' fees.

AS AND FOR A NINETEENTH CAUSE OF ACTION
AGAINST DEFENDANTS ANDREA M. ANASTASIO
and A. I. IOUKLIAEVSKIKH

116. Plaintiff repeats, reiterates and re-alleges each and every allegations contained in paragraphs "1" - "115" above as if the same were more fully re-alleged herein at length.

117. Defendant(s) Andrea M. Anastasio and/or defendant A. I. Ioukliaevskikh, by virtue of the foregoing conduct did commit abuse of process by activating regularly issued process, to wit, the filing of criminal complaints against the plaintiff.

118. Defendants, their agents, servants, officers and/or employees, sought detriment to the plaintiff without excuse or justification and which was outside the legitimate ends of the criminal process.

119. That as a result of the foregoing, plaintiff, Juan Wlaker, has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction plus attorneys' fees.

WHEREFORE, plaintiff demands judgment, jointly and severally against the defendants, on each causes of action in the in the sum above mentioned and attorneys' fees, together with the costs and disbursements of this action.

Dated: New York, New York
April 18, 2017

Antin, Ehrlich & Epstein, LLP
Attorneys for Plaintiff
49 West 37th Street - 7th Fl.
New York, New York 10018
(212) 221-5999

By: _____

Scott W. Epstein